

Court No. - 39

Case :- WRIT - C No. - 5912 of 2021

Petitioner :- Girish Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Dwivedi

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

Sri Rajesh Yadav, learned counsel for the respondent no.2 is present.

The demand notice dated 21.12.2017 issued by respondent no.3 is subject matter of challenge before this Court on the ground that the allegations that the petitioner had unauthorisedly used electricity is incorrect, inasmuch, as the petitioner is a consumer having service connection No.1017 with Account No.771713452026, granted to him on 20.07.2013.

It is not on record as to whether the petitioner had approached the competent authority respondent no.2 raising his grievance against the demand notice. The writ petition is being pressed on the plea that the respondents are harassing the petitioner.

Be that as it may, in absence of complete and correct material on record, it is not possible to Court to issue a writ of mandamus.

The petitioner is relegated to approach the respondent no.2 by taking recourse to the provisions of Clause 6.5 of Electricity Supply Code, 2005.

The writ petition is, accordingly, **dispose of.**

Order Date :- 15.3.2021

A.Kr.